

Motion will be continued to 7/21/26, 9am.

Defendant to provide notice of Motion to Plaintiff.

Court will file Order of continuance.

12. 9:00 AM CASE NUMBER: MS25-1096

CASE NAME: EQUITY RESIDENTIAL MANAGEMENT, LLC VS. SARAH SHEPARD

***HEARING ON MOTION IN RE: DEEM PLAINTIFF S REQUESTS FOR ADMISSIONS ADMITTED**

FILED BY: EQUITY RESIDENTIAL MANAGEMENT, LLC

TENTATIVE RULING:

Background

Plaintiff filed Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted, as well for the Authenticity of Records, (Motion), along with a Declaration and Memorandum.

Plaintiff attached the particular facts at issue in their Exhibit A to their Declaration.

Plaintiff attached a proof of service of their discovery request, indicating mail service to both defendants at the address listed on their jointly filed Answer.

Plaintiff also timely served, by mail, notice of this Motion.

Defendants neither responded to the discovery request, nor to this Motion.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers – namely, Items 1 and 2 in the Request for Authenticity of Documents; and items 1 through 81 in the Request for Admission of the Truth of Facts - shall be deemed admitted.

Plaintiff to prepare and submit the Order.

This matter will be re-assigned to Department 50, Commissioner Eichenberger, with a hearing scheduled for 5/18/26, 1:15 pm.

13. 9:00 AM CASE NUMBER: MSL21-02132

CASE NAME: CAPITAL ONE BANK VS ISRAEL

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION FILED BY PLN ON 11/24/25**

FILED BY:

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant that was the same as that listed in the Answer.

The parties entered into a CCP 664.6 agreement, filed on 11/1/24, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$5,174.39, plus costs, less any credits for payments received.

The Defendant made payments of \$3,854.39.

Costs are \$432. A memo on costs was filed 11/24/25.

The Stipulated Agreement was filed 11/1/24.

A dismissal was entered on 12/10/24.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$1,752.

Plaintiff shall prepare and submit a proposed order and judgment.